CONFIDENTIAL CLIENT FILE

Patel -- Residential Tenancy Dispute

File Reference: AP/2025/0341
Date Opened: 10 February 2025
Fee Earner: Ms. Rachel Nguyen, Solicitor (Housing)
Client: Mr. Amit Patel and Mrs. Sunita Patel
Landlord: Mr. George Whitfield, trading as Whitfield Property Rentals

1. Client Details

Mr. Amit Patel (aged 34) and Mrs. Sunita Patel (aged 31) reside at 42 Lancaster Road, Flat 3, Leeds, LS1 4HT, with their two children, Priya (aged 7) and Rohan (aged 4). Mr. Patel is employed as an NHS pharmacist at Leeds General Infirmary with an annual salary of GBP 43,500. Mrs. Patel works part-time as a teaching assistant earning GBP 14,200 per annum.

2. Tenancy Details

The Patels entered into an Assured Shorthold Tenancy (AST) agreement dated 1 August 2022 for Flat 3, 42 Lancaster Road, Leeds. The initial fixed term was 12 months, after which the tenancy continued as a statutory periodic tenancy.

Key terms:

- Monthly rent: GBP 1,150 (increased from GBP 1,050 on 1 August 2023 via s.13 notice)
- Tenancy deposit: GBP 1,575 (stated to be protected with the Deposit Protection Service)
- The property is a two-bedroom flat on the second floor of a converted Victorian house
- The landlord is responsible for structural and exterior repairs, heating, hot water, and sanitation under s.11 Landlord and Tenant Act 1985

3. Disrepair Issues

The Patels have experienced persistent disrepair issues since approximately January 2024. The following defects have been reported to the landlord in writing on at least three occasions (letters dated 15 January 2024, 4 April 2024, and 19 August 2024):

3.1 Damp and Mould: Extensive black mould growth in the main bedroom and the children's bedroom caused by penetrating damp from a defective roof above the flat. An environmental health officer from Leeds City Council inspected on 22 May 2024 and served an Improvement Notice under s.11 Housing Act 2004, requiring remediation within 28 days. The landlord has not complied.

3.2 Heating System: The gas central heating boiler (a Vaillant ecoTEC Plus, installed in 2016) has been intermittently failing since November 2023. It broke down completely on 3 December 2024. The family was without heating for 18 days (3-21 December 2024) during which external temperatures fell below zero on seven occasions. The landlord arranged a temporary repair on 21 December 2024, but the boiler continues to malfunction.

3.3 Hot Water: The hot water supply is linked to the defective boiler and has been unreliable throughout the same period.

3.4 Window Defects: The sash windows in the living room and main bedroom are rotten and do not close properly. This causes significant draughts and heat loss and has resulted in increased energy costs estimated at GBP 65 per month.

4. Health Impact

The disrepair has caused the following health consequences, documented by Dr. Imran Shah (the family GP) in a medical report dated 6 January 2025:

4.1 Priya Patel (aged 7): Diagnosed with a worsening of her pre-existing asthma, with three hospital attendances at Leeds Children's Hospital (14 February 2024, 18 June 2024, and 29 November 2024). Dr. Shah attributes the exacerbation directly to mould exposure.

4.2 Mrs. Sunita Patel: Diagnosed with stress and anxiety (prescribed sertraline 50mg since March 2024), attributed by Dr. Shah to the ongoing housing conditions and the impact on her children.

4.3 Mr. Amit Patel: Reports significant sleep disruption and stress affecting his work performance.

5. Deposit Protection Issue

A search of all three government-approved tenancy deposit schemes (DPS, MyDeposits, and TDS) conducted on 5 February 2025 confirmed that the Patels' deposit of GBP 1,575 is NOT currently protected in any scheme. Under s.213 Housing Act 2004, the landlord was required to protect the deposit within 30 days of receipt (i.e., by 31 August 2022) and serve prescribed information.

Failure to protect the deposit entitles the tenant to compensation of between 1x and 3x the deposit amount (s.214 Housing Act 2004). The court must order repayment of the deposit or its transfer to a scheme. This also prevents the landlord from serving a valid Section 21 notice until the deposit is protected or returned.

6. Quantum of Claim

6.1 General Damages for Disrepair:
Following the guidelines in English Churches Housing Group v Shine [2004], a reasonable assessment for 12 months of serious disrepair affecting two bedrooms and heating is 25-35% of rent paid:
- Rent paid during disrepair period (Jan 2024 - Feb 2025, 14 months): GBP 16,100
- General damages at 30%: GBP 4,830

6.2 Special Damages:
- Additional heating costs (portable electric heaters): GBP 910
- Increased energy bills from window defects (14 months x GBP 65): GBP 910
- Cost of mould treatment products: GBP 180
- Medical prescription charges: GBP 120

Total special damages: GBP 2,120

6.3 Deposit Penalty:
- Return of deposit: GBP 1,575
- Compensation (seeking 2x deposit): GBP 3,150

Total claim value: GBP 11,675

7. Legal Basis and Strategy

Disrepair Claim:
- Landlord and Tenant Act 1985, s.11 (implied repairing obligation)
- Homes (Fitness for Human Habitation) Act 2018, s.9A (fitness for habitation)
- Housing Act 2004, ss.11-12 (Housing Health and Safety Rating System)
- Human Rights Act 1998, Article 8 (right to respect for private and family life)

Deposit Claim:
- Housing Act 2004, ss.213-215

Strategy: Issue proceedings in the County Court. The deposit claim is unanswerable. The disrepair claim is strengthened by the Council's Improvement Notice and the medical evidence. We recommend issuing a Letter Before Action under the Pre-Action Protocol for Housing Disrepair Cases, with a 20-day response period, before issuing proceedings.

Prior to issuing proceedings, we should also consider whether a complaint to the Housing Ombudsman is appropriate, although this route is typically slower than court action.